

Families and Children Manual
Section: Categories of Eligibility
Policy Manual Number: 015.050
Chapter: Qualified Pregnant Woman Medically Needy.

Legal Authority: Sec. 1902 of the Social Security Act [42 USC 1396a]; 42 CFR 435.4; 42 CFR 435.301; 42 CFR 435.601; Tenn. Comp. R. & Regs. 1200-13-20

1. Policy Statement

TennCare Medicaid benefits are available to pregnant women who are not eligible for the MAGI Pregnant Woman category, who have resources within the Medically Needy resource limit based on household size, and who have countable income equal to or less than the Medically Needy Income Standard (MNIS) based on Eligibility Determination Group (EDG) size, or meet the spenddown requirement. Eligible women must meet all of the Qualified Pregnant Woman Medically Needy non-financial eligibility requirements.

2. Coverage Period

Women who are determined eligible for and receive TennCare Medicaid while pregnant remain eligible for TennCare Medicaid benefits through a 12-month postpartum period, beginning the last day of the pregnancy and ending on the last day of the month in which the 12-month period ends. The 12-month postpartum period is automatic and applicable to all pregnant women who have been determined eligible for and received TennCare Medicaid benefits prior to the end of the pregnancy. Pregnant women who apply and whose eligibility begin date is after the end of their pregnancy are not eligible for a 12-month postpartum period but will maintain benefits through a 60-day postpartum period. The postpartum coverage period is applied regardless of any changes in household circumstances and regardless of how the pregnancy ends.

The 12-month postpartum period will end prior to the end of the 12 months in the following instances:

- a. Coverage is voluntarily terminated;
- b. The woman is no longer a resident of Tennessee;
- c. The State determines that eligibility was erroneously granted at the most recent eligibility determination or renewal of eligibility because of state error, or fraud, abuse, or perjury attributed to the woman or the her representative; or
- d. Death.

3. Non-Financial Eligibility Requirements

Pregnant women eligible for the Qualified Pregnant Woman Medically Needy category must meet all non-financial eligibility requirements. Additional information about each condition of eligibility is available in the Non-Financial Eligibility chapters.

- a. **Age:** There is no minimum or maximum age for this category.
- b. **Citizenship:** A pregnant woman must be a U.S. Citizen, U.S. National or eligible non-citizen.
- c. **Enumeration:** A pregnant woman must possess and provide a valid Social Security Number (SSN) or proof of application for an SSN, unless she meets an exception.
- d. **State Residence:** A pregnant woman must be a resident of Tennessee.
- e. **Cooperation with Child Support Services:** A pregnant woman is not required to agree to cooperate with Child Support Services for the unborn baby.
- f. **Pregnancy:** A woman must be pregnant. Self-attestation of pregnancy is accepted and considered verified when determining eligibility.

4. Financial Eligibility Requirements

a. Eligibility Determination Group

The EDG determined for Medically Needy categories is based on the methods of the former AFDC program. The EDG includes individuals, living in the home, who impact the household size, and household income and resources considered for an applicant's financial eligibility. For EDG household composition details, see the Medically Needy Eligibility Determination Group policy.

b. Income Standard

EDG Size	Income Standard	EDG Size	Income Standard
1	\$241	11	\$683
2	\$258	12	\$733
3	\$317	13	\$792
4	\$325	14	\$842
5	\$392	15	\$900
6	\$408	16	\$950
7	\$467	17	\$1000

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8	\$517	18	\$1,058
9	\$567	19	\$1,108
10	\$625	20	\$1,167

If the EDG income exceeds the Income Standard, the applicant is not considered income eligible and will need to spend down income to the applicable income standard. See the Medically Needy Spenddown policy.

c. Resources

The resource limit for the Qualified Pregnant Women Medically Needy category is \$2,000 for one individual and \$3,000 for two individuals. An additional \$100 is added per additional individual.

d. Disregards

i. Earned Income

The following situations specify disregards that are applied to an individual's earned income:

1. Standard Work Expense Deduction

A \$90 disregard per month for work expenses is permitted for each individual with earned income.

2. Dependent Care Deduction

A daycare expense of up to \$175 per month per dependent age 2 or older is applied. A daycare expense up to \$200 per month per dependent under age 2 is applied.

3. Irregular Earned Income Disregard

Exclude up to \$30 per calendar quarter of earned income that is received either irregularly or infrequently. In order to be excluded, the income need only be irregular or infrequent. See the Medically Needy Countable and Excluded Income policy.

4. Student Income

Exclude the earnings of a full-time student who works part time.

Count the earnings of a full-time student who works full time.

Exclude the earnings of a part-time student who works part time.

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Count the earnings of a part-time student who works full time.

A student is defined as a child under age 21 attending primary or secondary school, college, university, or a course of vocational or technical training.

- a. A child retains her student status during official school vacations and breaks if the requirement prior to the vacation or break were met, and the student plans to return.
- b. A child who is receiving elementary/secondary or equivalent vocational/technical instruction from a homebound teacher meets student requirements.
- c. An elementary school is defined as a state-approved educational institution comprised of grade kindergarten through eighth grade.
- d. Participation in apprenticeships, correspondence courses, other courses of home study and rehabilitation programs other than academic, institutional, vocational or technical training do not qualify a child as a student.

A full-time student for college or university is an individual who is enrolled in at least 12 credit or semester hours per semester. A part-time student is an individual who is enrolled in at least 6 but less than 12 credit or semester hours per semester. (TCA 49-4-902(18) and (29)).

ii. Unearned Income

1. Child Support Disregard

Exclude up to \$50 per month of current child support payments received per EDG.

2. Irregular Unearned Income Disregard

Exclude up to \$30 per calendar quarter per household of unearned income that is received either irregularly or infrequently. See Medically Needy Countable and Excluded Income policy.

iii. Child Support/Mandatory Expenses

1. Legally Obligated Child Support

When an applicant or Financially Responsible Relative (FRR) is making court-ordered child support payments for dependents outside the household, a deduction is permitted. Calculate the amount of the child support deduction by adding all monthly child support/mandatory expenses incurred.

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2. Legally Obligated Child Support Arrearage

Deduct the amount of legally obligated child support arrearage payments being made by an applicant or FRR.

3. Legally Obligated Alimony

Deduct the amount of legally obligated alimony payments being made by an applicant or FRR.

e. Budget

Ms. Smith, a pregnant woman, and her 1 year old child are applying for medical assistance. Ms. Smith has no unearned income. Her Net Countable Earned Income is \$5,000. Ms. Smith pays \$400 per week for childcare. She has \$50,000 of incurred allowable medical expenses.

Ms. Smith's Net Countable Income is over the Income Standard for an EDG size of 3. A spend down of her allowable medical expenses of \$4,393 is applied. See the Medically Needy Spenddown policy. She is eligible for the Qualified Pregnant Woman Medically Needy category.

Income Budget Calculation		
Net Countable Self-Employment Income		\$ 0.00
Net Countable Earned Income	+	\$ 5,000.00
Combined Earned/Self-Employment Income	=	\$ 5,000.00
Irregular Earned Income Disregard (\$30)	-	\$ 0.00
Standard Work Expense Deduction (\$90)	-	\$ 90.00
Dependent Care Deduction (Up to \$200 depending on age)	-	\$ 200.00
Remaining Countable Earned/Self-Employment Amount	=	\$ 4710.00
Net Countable Unearned Income		\$ 0.00
Irregular Unearned Income Disregard (\$30)	-	\$ 0.00
Child Support Disregard	-	\$ 0.00
Total Deemed Income	+	\$ 0.00
Remaining Countable Unearned Income	=	\$ 0.00
Child Support/Mandatory Expense	-	\$ 0.00
Total Net Countable Income (Remaining Countable Earned/Self-Employment Amount + Total Deemed Income + Remaining Countable Unearned Income – Child Support/Mandatory Expense)	=	\$ 4,710.00
Net Income Limit	-	\$ 317.00
Spenddown Met		Yes
Income Test Result		PASS

The above budget is current as of March 2017.

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Version History

Revision Date	Section	Section Title	Page Number(s)	Reason for Revision	Reviser
06.04.2015				Publication	
08.01.2016	2.	Coverage Period	1	Policy Clarification	AJ
03.18.2019	1.; 4.a.; 4.b.; 4.d.	Legal Authority; Policy Statement; Eligibility Determination Group; Income Standard; Disregards;	1-5	Policy Clarification	ME
03.18.2019	3.; 4.a.; 4.b; 4.d.; 4.d.i.2- 4.d.i.4; 4.d.ii.2; 4.e.	Non-Financial Eligibility Requirements; Eligibility Determination Group; Income Standard; Dependent Care Deduction; Irregular Earned Income; Student Income; Irregular Unearned Income Disregard; Budget	1-5	Non-Substantive Change	ME
10.01.2020	4.b.; 4.d.iii.1	Financial Eligibility Requirements	2; 4	Non-Substantive Change	TN
10.01.2020	4.d.ii.2, 4.e.	Financial Eligibility Requirements	4-5	Policy Clarification	TN
04.01.2022	2.	Coverage Period	1	Policy Change	TN
04.01.2022	4.d.i.4.	Financial Eligibility Requirements	3	Policy Clarification	TN